

FALSE CLAIMS ACT

Reporting Fraud, Waste and Abuse

All employees, contractors, and agents of the Company must immediately report to the agency of any suspicion of fraud, waste, or abuse in connection with the business of the Company.

Detailed Information of the Federal False Claims Act

The federal FCA imposes civil (and in some cases criminal) penalties on people and entities who knowingly submit a false claim, or act in deliberate ignorance of the claim's truth or falsity or act in reckless disregard of its truth or falsity or conspire to defraud the government by getting a false or fraudulent claim paid. Specific intent to defraud is not required.

The FCA includes an important provision that allows private citizens to initiate a lawsuit on behalf of the federal government and request the government to join in the suit. In return, that citizen may share a percentage of any recovery or settlements. This type of lawsuit is known as a qui tam and the individual, or relator, is a "whistleblower", who brings forth evidence of the alleged improper conduct. The purpose of this qui tam provision is to give an incentive for whistleblowers to come forward to help the government discover and avoid paying fraudulent claims as well as prosecute those who submit false claims by awarding whistleblowers a percentage of the recovery.

To prevail under a lawsuit, the relator must be the "original source" of the information reported to the federal government. Specifically, the relator must have direct and independent knowledge of the false claims activities and voluntarily provide this information to the government. If the matter disclosed is already the subject of a federal investigation, or if the healthcare provider or supplier has previously disclosed the problem to a federal agency, the relator may be barred from obtaining a recovery under the FCA.

A private legal action under the FCA must be brought within six (6) years from the date that the false claim was submitted to the government. Depending upon the circumstances, a government-initiated claim may be brought up to 10 years after the false claim.

The FCA is not confined to healthcare claims, but extends to any payment requested of the federal government. The FCA applies to billing and claims sent from D-H to any government payor program, including Medicare and Medicaid.

It is the policy of the Company that an employee, contractor or agent of the Company who knowingly submits a false claim will be reported to the necessary authorities. Under the FCA, anyone or any entity that submits a false claim or statement to the government may be fined a civil penalty between \$5,500 and \$11,000 for each such claim submitted, regardless of the size of the false claim, and the person or entity could be required to pay three times the amount of the damages that the government sustains. In addition, the government can exclude violators from participating in Medicare, Medicaid, and other federal healthcare programs.

Examples of potential false claims include, but are not limited to: (a) billing of items or services that were never rendered by the health care provider; (b) billing for services that are medically unnecessary; (c) upcoding (practice of billing for Medicare/Medicaid using a billing code providing a higher payment rate than the billing code intended to be used for the service or item furnished to the patient); (d) billing separately for services that should be bundled; (e) billing separately for outpatient services that were provided within 72 hours (before or after) an inpatient stay; (f) billing for a discharge in lieu of a transfer.

Whistleblower Protection – Federal Law

The federal FCA protects employees who are discharged, demoted, suspended, harassed, or in any manner discriminated against by their employer because of their participation or assistance (e.g., testimony, initiation of investigation) in a false claim action.

The Act entitles employees to relief to "make them whole", including restatement with the same seniority status they would have had but for the discrimination, twice the back pay, interest on back pay, and compensation for any special damages sustained as a result of the discrimination including litigation costs and reasonable attorneys' fees.

Detailed Information of the Federal Program Fraud Civil Remedies Act

Individuals or entities that commit fraud against the federal government, by false claims or statement, can be assessed money penalties in addition to the penalties of the FCA under the Program Fraud Civil Remedies Act (PFCRA). PFCRA penalties of \$5,000 per false claim or statement apply if an individual or entity submits a claim to the federal government that: the individual or entity knows or has reason to know is false, fictitious, or fraudulent; includes or is supported by written statements containing false, fictitious, or fraudulent information; includes or is supported by written statements that omit a material fact, which causes the statements to be false, fictitious, or fraudulent and the individual submitting the statement has a duty to include the omitted fact; or is for payment of property or services that are not provided as claimed.

The \$5,000 penalty also applies if a person or company provides written back-up or materials relating to the claim in which the individual or entity asserts a material fact that is false, fictitious or fraudulent; or omits a fact that the individual had a duty to include, the omission causes the statement to be false, fictitious, or fraudulent, and the statement contains a certification of accuracy.

ABUSE, NEGLIGENCE, EXPLOITATION, MISTREATMENT & MISAPPROPRIATION OF PATIENT PROPERTY

It is the policy of the Company that "abuse" allegations (abuse, neglect, exploitation or mistreatment, including injuries of unknown source and misappropriation of patient property) are reported per Federal and State Law. The agency will ensure that all alleged violations involving abuse, neglect, exploitation or mistreatment, including injuries of unknown source and misappropriation of patient property, are reported immediately, but not later than 2 hours after the allegation is made.

Employment Agreement

Employees of the Company shall not physically, mentally or emotionally abuse, mistreat or neglect a patient. Any the Company employee who becomes aware of abuse, mistreatment, neglect, exploitation or misappropriation shall immediately report to the Administrator. The Administrator or designee will report "abuse" to the state agency per State and Federal requirements. In addition, local law enforcement will be notified of any reasonable suspicion of a crime against a patient of the agency.

Definitions of Abuse and Neglect:

Abuse

Abuse is the willful infliction of injury, unreasonable confinement, intimidation, or punishment with resulting physical harm, pain or mental anguish. Abuse also includes the deprivation by an individual, including a caretaker, of goods or services that are necessary to attain or maintain physical, mental, and psychosocial well-being. Instances of abuse of all residents, irrespective of any mental or physical condition, cause physical harm, pain or mental anguish. Abuse includes verbal abuse, sexual abuse, physical abuse and mental abuse, including abuse facilitated or enabled through the use of technology. Willful, as used in this definition of abuse, means the individual must have acted deliberately, not that the individual must have intended to inflict injury or harm.

- a) **Verbal abuse** is defined as the use of oral, written or gestured language that willfully includes disparaging and derogatory terms to patients or their families, or within their hearing distance, regardless of their age, ability to comprehend, or disability. Examples of verbal abuse include, but are not limited to: threats of harm; saying things to frighten a patient, such as telling a patient that he/she will never be able to see his/her family again.
- b) **Sexual abuse** is non-consensual sexual contact of any type with a patient.
- c) **Physical abuse** includes hitting, slapping, pinching, and kicking. It also includes controlling behavior through corporal punishment.
- d) **Mental abuse** includes but is not limited to, humiliation, harassment, threats of punishment or deprivation.

Exploitation

Exploitation is defined as unfair treatment or use of a patient or the taking advantage of a patient for personal gain through the use of manipulation, intimidation, threats, or coercion.

Misappropriation

Misappropriation of patient property means the deliberate misplacement, exploitation, or wrongful, temporary, or permanent use of a patient's belongings or money without the patient's consent.

Mistreatment

Mistreatment means inappropriate treatment or exploitation of a patient.

Neglect

Neglect is the failure of the agency, its employees or service providers to provide goods and services to a patient that are necessary to avoid physical harm, pain, mental anguish, or emotional distress.

Injuries of Unknown Origin: An injury should be classified as an injury of unknown source when both of the following conditions are met:

- a) The source of the injury was not observed by any person or the source of the injury could not be explained by the patient;
- b) The injury is suspicious because of the extent of the injury or the location of the injury (e.g., the injury is located in an area not vulnerable to trauma) or the number of injuries observed at one particular point in time or the incidence of injuries over time.

NON-COMPETE

As an employee of the Company, the employee acknowledges that they will be in receipt of confidential information. This information shall include but not be limited to procedures manuals, in-house policies, patient lists, patient medical records, financial information and billing records, certifications and applications, actual and prospective markets and patient business plans, marketing strategies, customer lists, sales and marketing data, operating systems, income statements, asset and liability information, financial projects and any other confidential information gathered, revealed, acquired or generated by or for the Company. Each employee shall protect and hold in confidence the confidential information to anyone except with the express written consent of Administrator. The employee acknowledges and understands the competitive sensitivity of the confidential information and the potential for significant material harm that could result to the Company, Inc. in the event that confidential information is disseminated to others, in particular competitors. Therefore, the employee agrees that the appropriate remedy would be an immediate injunction against the violating employee in joining and prohibiting the use and continued dissemination of the confidential information. Further, each employee agrees that the dissemination of the confidential information would cause damages for which damages could not be readily ascertained and would constitute a breach of duty owed by the employee to the Company. Each employee agrees to pay the Company, Inc. in any action to enforce this confidentiality agreement or cost of litigation, including attorney's fees and other damages found by the trier of fact.

As consideration for employment and for the release of this confidential information, employee agrees not to compete *against* the Company, or to utilize any of the confidential information for a period of two (2) years from the date of their employment terminated with the Company. This Non-Compete agreement shall be limited to Los Angeles, Riverside, San Bernardino, Orange and contiguous counties. This Non-Compete Agreement is not intended to prohibit employees from working as a Nurse, Therapist or other position in the health service industries but is intended to prohibit employee from working with a competitor *of* the Company, Inc. in the home health industry and utilizing any of the

confidential information of the Company, Inc. or contacting any of the Company, Inc. patients. Employee agrees and warrants that they will not contact, engage, discuss, negotiate or contract with any patient or family member of a patient for those purpose of developing or promoting home health care services of said patient. All parties acknowledge that this confidential information is of a proprietary nature the Company, Inc. and if this confidential information was revealed to the general public or to a competitor, the revelation would destroy or impair the expected success of the Company.

ANY CONTROVERSY OR CLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL BE SUBMITTED TO ARBITRATION BEFORE ONE (1) ARBITRATOR IN LOS ANGELES, CALIFORNIA IN ACCORDANCE WITH THE COMMERCIAL ARBITRATION RULES OF THE AMERICAN ARBITRATION ASSOCIATION JUDGEMENT UPON THE AWARD RENDERED BY THE ARBITRATOR MAY BE ENTERED BY ANY COURT HAVING JURISDICTION THEROF. ARBITRATION SHALL BE THE EXCLUSIVE FINAL AND BINDING METHOD OF RESOLUTION OF ANY CLAIM OR CONTROVERSY BETWEEN HEART OF HOPE HOME HEALTHCARE, INC. AND EMPLOYEE ARISING FROM THIS AGREEMENT.

COMPANY PHONE, CELL PHONE & SOCIAL MEDIA

Company Phones

Each time an employee makes or receives a telephone call they represent the Company. The manner in which a call is handled determines how the Company is judged by our clients, customers, and vendors. Employees should always be respectful and courteous when receiving or making any call. During working hours, employees should refrain from making or receiving personal telephone calls on company phones except for emergencies.

Cell Phones

All the Company employees are expected to use the same discretion in using personal cell phones as is expected for the use of company phones. Personal cell phones should remain off or silent as to not disrupt the work environment. Except in case of an emergency, cell phone usage, texting, or emailing for personal business while at work is not permitted. To ensure patient and client information is protected, use of the camera on any cell phone in the Company or in any company vehicle is strictly prohibited.

the Company **DOES NOT** permit employees on company time to talk on the cellular phones while driving a vehicle. This is very dangerous and should be avoided any time. It is mandatory to pull over and stop your vehicle each time you conduct agency business per cell phone.

The agency is not responsible for any moving violations, accidents or other incidents that may occur while *YOU* are using your cellular phone and driving.

Social Media

Because social media channels can be viewed publicly, the HIPAA Privacy Rule prohibits the publication of PHI on social media networks. That includes any text about specific patients as well as pictures or videos that could lead to a patient being identified. PHI can only be published in social media posts if a patient has given their consent in writing to permit their PHI to be used and then only for the purpose specifically stated on the consent form.

EMPLOYEE DRESS CODE & PERSONAL CLEANLINESS

All field staff employees are expected to present themselves as healthcare professionals and wear the Company issued identification cards when servicing clients. the Company expects all employees to be neat, clean and well-groomed while working. While providing client service or while otherwise in contact with clients or the public during working time.

General Appearance:

Undergarments

- Must be worn at all times
- Attention should be given to avoid wearing patterned or bright undergarments under light colored clothing or undergarments that are visible under any clothing.
- Knee highs and thigh highs are not to be visible when sitting

Casual Clothes-Not Permitted

This includes, but is not limited to:

- Jeans
- Sweatpants
- Tee-shirts with derogatory graphics or writing
- Halter tops
- Tank tops
- Tops that reveal undergarments
- Revealing low cut tops
- Revealing low cut dresses
- Off the shoulder wear
- No strapless sun dresses
- See through blouses without a camisole

- See through skirts/dresses without a slip
- Spandex leggings

Footwear – Must be closed toe

- Pantyhose or socks
- Clean white sneakers
- Nursing clogs
- Dress shoes

Hair and Headwear

- Hair must be clean
- Hair must not interfere with patient care
- Conservative braided hairstyles without beads or ornamentation are permitted
- Hats, bandanas, and head dress are generally not permitted (unless part of religious, medical or uniform attire).

Jewelry

- Jewelry is permitted however jewelry that inhibits the effective practice of universal precautions or any other safety procedure is prohibited.
- Nose/Eye/Lip jewelry may not be worn by any team member.
- In all cases, medical jewelry is acceptable.

Nails

- Artificial nails, acrylic nails, gel overlays, nail jewelry are not permitted on all direct patient care team members

Personal Hygiene

- Personal cleanliness and hygiene must be maintained at all times.
- Every effort should be made to avoid offensive body odors through the regular practice of sound personal hygiene and by the use of deodorants and other toiletries.
- Perfumes should not be used in a manner which would adversely affect the comfort of team members.
- Oral hygiene is mandatory for all team members.

ANTI-HARASSMENT

Intent

the Company believes that respectful, professional conduct furthers the Company's mission, promotes productivity, minimizes disputes, and enhances our reputation. the Company expects every employee to show respect for all of our colleagues, patients, and vendors. Harassment by co-workers, supervisors, or any third parties is a form of misconduct that destroys our work environment and undermines the integrity of the employment relationship. The Company is committed to providing a work environment that is free of unlawful discrimination, including harassment that is based on any legally protected status. The Company will not tolerate any form of discrimination or harassment that violates this policy.

Non-Discrimination

the Company does not discriminate in employment opportunities or practices on the basis of race, color, religion, disability, national origin, genetic information, sex (including pregnancy), age, sexual orientation, gender (including gender identity and expression), marital status, protected veterans status, citizenship status or any other characteristic protected by applicable law.

Our policy of Non-discrimination in employment applies to recruitment, hiring, compensation, promotions, transfers, discipline, demotions, terminations, layoffs, access to benefits and training and all other aspects of employment.

Employees with questions or concerns about any type of discrimination in the workplace are encouraged to bring these issues to the attention of their manager or the Human Resources department. Employees can voice concerns and submit reports without fear of retaliation. Any the Company employee found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

Harassment Prohibited

We will provide a safe and pleasant work environment where everyone is treated with fairness and respect. It is against Company policy for any employee to verbally or physically harass or discriminate against another employee on the basis of an individual's race, color, religion, national origin, genetic information, sex (including pregnancy), age, sexual orientation, gender (including gender identity and expression), marital status, protected veterans status, citizenship status or any other characteristic protected by applicable law. Harassment of employees in the Company workplace by any third party will not be tolerated either. Any employee who violates the company policy against harassment will be subject to corrective action, up to and including termination.

The conduct prohibited by this policy, whether verbal, physical, or visual, includes any discriminatory employment action and any welcome or unwelcome conduct that is inflicted on someone because of that individual's protected status. Among the types of conduct prohibited by this policy are epithets, slurs, jokes, negative stereotyping, intimidating acts, and the circulation or posting of written or graphic materials that show hostility toward individuals because of their protected status. The company prohibits that conduct in the workplace, even if the conduct is not sufficiently severe or pervasive to constitute unlawful harassment.

Sexual Harassment

Sexual harassment is defined as unwelcome sexual advances; requests for sexual favors and other verbal or physical conduct where:

- Submission to such conduct is either an explicit or implicit condition of employment.
- Submission to, or rejection of, such conduct is used as the basis for employment decisions affecting the person involved.
- Such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment.

This policy forbids harassment based on gender regardless of whether the offensive conduct is sexual in nature and regardless of whether it rises to the level of a legal violation. Any unwelcome conduct based on gender is also forbidden by this policy regardless of whether the individual engaged in harassment and the individual being harassed are of the same or are of different genders.

Examples of gender-based harassment forbidden by this policy include (1) offensive sex-oriented verbal kidding, teasing or jokes; (2) repeated unwanted sexual flirtations, advances or propositions; (3) verbal abuse of a sexual nature; (4) graphic or degrading comments about an individual's appearance or sexual activity; (5) offensive visual conduct, including leering, making sexual gestures, the display of offensive sexually suggestive objects or pictures, cartoons or posters; (6) unwelcome pressure for sexual activity; (7) offensively suggestive or obscene letters, notes or invitations; or (8) offensive physical contact such as patting, grabbing, pinching, or brushing against another's body.

Reporting Procedures

Any employee who believes he or she has experienced or witnessed any conduct that is in violation of this policy should report that concern to a supervisor or Human Resources representative immediately. These are the individuals authorized by this policy to receive complaints on behalf of the Company. This policy does not require reporting harassment to any individual who is creating the harassment.

Complaints may be made orally or in writing. If a complaint is made orally, the employee may be asked for a written statement during the investigation. All complaints, to the extent possible, should include dates, times, location, details of the incident(s), names of the individuals involved and the names of witnesses to the incident(s). All complaints will be forwarded immediately to Human Resources. Any supervisor who is aware of conduct inconsistent with this policy or who receives or learns of a report of conduct inconsistent with this policy must report such conduct immediately to Human Resources.

Responding To Complaints

All reports describing conduct that is inconsistent with this policy will be investigated promptly and thoroughly. Employees are required to cooperate in investigations. The Company is committed to maintaining confidentiality to the extent possible. The Company will take all reasonable measures to ensure that the situation is divulged only to those with a need to know.

Corrective Action

We will not tolerate any harassment or discrimination in violation of this policy. If an investigation reveals that a violation of this policy or other inappropriate conduct has occurred, then the Company will take corrective action, including discipline, up to and including termination of employment, as is appropriate under the circumstances, regardless of the job positions of the parties involved. The Company may discipline an employee for any inappropriate conduct discovered in investigating reports made under this policy, regardless of whether the conduct amounts to a violation of law. If the person who engaged in conduct in violation of this policy is not a Whirlpool employee, then we will take whatever corrective action is reasonable and appropriate under the circumstances.

Retaliation Prohibited

Retaliatory treatment of any employee for reporting discrimination, harassment or other prohibited behavior or for cooperating in a harassment investigation is strictly forbidden. All employees who experience or witness any conduct they believe to be retaliatory should immediately report such conduct to a supervisor or Human Resources representative.

DRUG-FREE WORKPLACE

the Company is committed to protecting the safety, health and well-being of all employees and patients. We recognize that alcohol abuse and drug use pose a significant threat to our goals. We have established a drug-free workplace program that balances our respect for individuals with the need to maintain an alcohol- and drug-free environment. This organization encourages employees to voluntarily seek help with drug and alcohol problems.

Covered Employees

Any individual who is employed by the organization or is applying for a position is covered by our drug-free workplace policy. Our policy includes but is not limited to executive management, managers, supervisors, full-time employees, part-time employees, off-site employees and applicants.

Applicability

Our drug-free workplace policy is intended to apply whenever any employee is representing or conducting business for the organization. Therefore, this policy applies during all working hours, whenever conducting business or representing the organization, or while on call or paid standby.

Prohibited Behavior

It is a violation of our drug-free workplace policy to use, possess, sell, trade and/or offer for sale controlled substances or alcohol. The presence of an amount of any controlled substance that results in a positive test is prohibited.

Controlled Substances

As used in this policy, controlled substances include any drug that is illegal under federal or state law, or that is legally obtainable but has not been legally obtained. The term includes prescribed drugs which are not being used for the prescribed purpose or in the prescribed manner.

Notification of Convictions

Any employee who is convicted of a criminal drug violation in the workplace must notify the organization in writing within five calendar days of the conviction. The organization will take appropriate action within 30 days of notification.

Searches

Entering the organization's property constitutes consent to searches and inspections. If an individual is suspected of violating the drug-free workplace policy, he or she may be asked to submit to a search or inspection at any time. Searches can be conducted of pockets and clothing, lockers, wallets, purses, briefcases and lunch boxes, desks and work stations, and vehicles and equipment.

Medication Guidelines

Employees are expected to manage potential impairment during working hours due to the legitimate use of medications. There are numerous over-the-counter and prescription drugs that may negatively impact safe work performance. Therefore, employees are expected to consult with their personal physician or other health care professional to determine if use of such medication will have any potential negative impact on safe job performance. Use of medication that may pose a threat to workplace safety must be discussed with the employee's supervisor.

Assistance

This company recognizes that alcohol and drug abuse and addiction are treatable illnesses. We also realize that early intervention and support improve the success of rehabilitation. To support our employees, our drug-free workplace policy encourages employees to utilize the services of qualified professionals in the community to assess the seriousness of suspected drug or alcohol problems and identify appropriate sources of help. Treatment for alcoholism and/or other drug use disorders may be covered by the employee benefit plan. However, the ultimate financial responsibility for recommended treatment belongs to the employee.

INFECTION CONTROL

The Company wants to improve patient outcomes by identifying and reducing the risk of infection in patients and agency staff. The agency will document infections that are acquired while the patient is receiving services from the agency. The documentation will include at a minimum the date that the infection was detected, patient's name or number, primary diagnosis, signs/symptoms, type of infection, pathogens identified and treatment. The infection control program will include surveillance, identification, prevention, control, and reporting. Targeted surveillance of infections will focus on specific patient population or procedures.

Infection Control Standards are established in compliance with the recommendations of the National Center for Disease Control in Atlanta, Georgia. All staff is educated on these standards and they are practiced consistently. Any incidents of infection related to care and service are reported.

Standard Precautions

All employees will utilize Standard Precautions. Standard Precautions are used for the care of all patients, regardless of suspected or confirmed infection status. These precautions combine the major features of Universal Precautions and Body Substance Isolation and are based on the principles that all blood, body fluids, secretions, excretions (except sweat), non-intact skin, and mucous membranes may contain transmissible infectious agents. The use of Standard Precautions is mandated by OSHA. Standard Precautions are required whenever there is a potential for exposure to: blood, bodily substances or fluids (except sweat), mucous membranes, non-intact skin, secretions, and excretions. Standard Precautions include: Hand Hygiene, Respiratory Hygiene, Personal Protective Equipment (PPE), Safe Injection Practices, and Sharps Precautions.

Other Precautionary Measures

The CDC identifies special precautionary measures for each of the following three routes of pathogen transmission:

- a) Airborne – indicated for active pulmonary Tuberculosis, including for non-pulmonary TB, where aerosolization of TB-infected wound bacilli is possible; Avian H5N1 Influenza; bioterrorism agents (anthrax, smallpox, etc.); Chicken Pox and disseminated Shingles; SARS; and Measles.
- b) Droplet – required for pathogens which are expelled from the respiratory tract on microscopic droplets such as Adenovirus/Rhinovirus; Influenza (most types); Respiratory Syncytial virus; Pertussis; and Strep Throat.
- c) Contact Precautions – required for pathogens that are transmitted by either direct contact with the patient or indirect contact via patient-contaminated items. These include Enteric Infections such as C. difficile and Rotavirus; Respiratory Infections such as Influenza; Skin/Wound Infections such as MRSA and Impetigo; Parasitic Infections such as Scabies; and Multiple Drug Resistance Organisms such as MRSA and VRE.

Engineering Controls

Engineering controls and work practice controls will be used to prevent or minimize exposure to bloodborne and other pathogens.

- a) Only safety needles, venipuncture/vacutainer devices with safety shields, and needle-less intravenous systems will be utilized by the Company staff.
- b) Sharps containers will be readily available and part of every nurse's equipment.

- c) Sharps containers will be returned to the office and placed in the designated sharps disposal containers (Biohazard containers will be labelled with the BIOHAZARD symbol and lined with biohazard red bags. Containers will be picked up by the contracted company on a regularly scheduled basis.
- d) All clinicians, regardless of job description, will ensure that reusable equipment (stethoscopes, bandage scissors, ultrasound machines, PT/INR meters, etc.) are cleaned after use with the appropriate cleaning solution.

Other Medical Waste

Medical waste includes disposable items that are contaminated with blood, body substances but have no sharp needles or edges that could puncture a person's skin. Examples include old dressings with drainage, paper towels used to wipe blood spills and diapers.

- a) Volumes of blood/body fluids/body substances can be safely disposed of in the patient's toilet. Avoid splashing, splattering, or aerosolizing.
- b) Waste not appropriate for sewage systems should be bagged in plastic bags. Use critical thinking to determine if single bagging is adequate or whether double bagging is preferred. Throw away in household trash.

Personal Protective Equipment (PPE)

All employees are to wear PPE whenever contact, splashes or sprays with blood, bodily fluids, secretions, excretions, mucous membranes or non-intact skin is likely. The type of PPE depends on the type of patient/provider interaction and the potential for exposure to blood/body fluids or pathogens. Training will be provided by the clinical manager/designee in the use of the appropriate PPE for the tasks or procedures employees will perform. PPE include:

- a) Gloves - single use, disposable, medical examination gloves
- b) CPR one-way valve masks/shields
- c) Surgical masks; NIOSH-approved N95 respirator
- d) Goggles (with solid side shields) or masks with face shields
- e) Gown/apron, disposable. Employees are also required to comply with Bag Technique guidelines. Strict compliance will help reduce the risk of transmission of infection.

Hepatitis B Vaccination

Hepatitis B vaccination is recommended for all clinicians who may have occupational exposure to blood or other potentially infectious material (OPIM). Training will be provided to new employees on Hepatitis B, addressing the safety, benefits, efficacy, method of administration, and availability. The Hepatitis B vaccination series will be provided at no cost after training and within 30 days of initial hire to those employees who meet the criteria unless:

- a) Documentation exists that the employee has previously received the series.
- b) Antibody testing reveals that the employee is immune, or
- c) Medical evaluation shows that the vaccination is contraindicated. Vaccination will be provided by one of the contracted sites. If an employee chooses to decline vaccination, the employee must sign a declination form.

Influenza Vaccination

The Company recognizes the importance of providing Influenza vaccine to its employees and patients. The Company provides updated CDC materials yearly to staff and patients to encourage participation. The vaccine is offered yearly to all employees free of charge and to all active patients.

HIPAA TRAINING AND OSHA INFECTION CONTROL

Blood-borne pathogens

Blood-borne pathogens are microorganisms in the blood or other body fluids that can cause illness and disease in people. They may be transmitted through contact with infected blood and body fluids, such as semen, vaginal secretions, synovial fluid, amniotic fluid, cerebrospinal fluid, pleural fluid, peritoneal fluid, pericardial fluid, feces, nasal secretions, urine, vomitus, sputum, and saliva. Illness may be caused when infection blood or other infection material is introduced into the bloodstream of a person.

Universal or Standard Precautions

Under the concepts of universal precautions, all human blood and certain body fluids from all clients/patients are to be treated as if they are known to be infectious for HIV, HBV, HCV, and other blood-borne pathogens. Essential precautions include:

- Hand washing. Wash hands after contact with blood or body fluids even if gloves were worn and there is no visible tear, puncture, or leak. Wash hands before and after all work with patients.
- The use of barriers to prevent contact with potentially infected material, known as Personal Protective Equipment (PPE):
 - Gowns for use when clothing is likely to be soiled with blood or body fluids.
 - Masks for use when clothing and/or face may be soiled with blood or body fluids (replace when wet).
 - Gloves for use when hands are likely to be in contact with blood or body fluids. Wash hands after glove removal. Dispose of gloves after single patient use. If you have a latex allergy or allergy-type reactions, ask your preceptor latex free gloves.
 - Eye protection (e.g. face shields or goggles) for use when there is potential for splash or spray.

Exposure

Should you be exposed to blood or other potentially infectious material:

- Flush the site and cleanse with soap and water.
- Flush mucous membrane with water or saline.
- Report the incident immediately to your clinical preceptor.

Disposal

When disposing of broken glass or other sharp objects, never pick up the pieces by hand. Wear gloves and pick up the pieces using tongs or a brush and pan. Dispose of the materials in a sharps container.

Needle Safety

Do not recap a needle after use.

- Discard used needles, glass slides, scalpels, capillary tubes, disposable razors, lancets, etc. in a sharps or biohazard container.
- Do not overfill the used sharps container or push sharps into a filled container.

Material Safety Data Sheets (MSDSs)

Material Safety Data Sheets (MSDSs) are prepared by the chemical manufacturer or distributor to provide information about the chemical, the manufacturer, toxicity, flammability, physical and health hazards, exposure limits, precautions and controls, emergency and first aid treatment for exposures, and other information. Examples of hazardous materials found in a clinical area include infectious waste, flammable liquids and gases, toxic chemicals, radioactive materials, cancer causing chemicals and drugs, and compressed gas cylinders. MSDSs must be accessible 24 hours a day. Your preceptor should be able to locate the MSDSs as needed.

HIPAA Privacy and Security Rules

HIPAA privacy and security rules protect the individual patient's privacy related to health and identification information. HIPAA stands for Health Insurance Portability and Accountability Act. That is a somewhat unclear title for most of us that essentially means "Private". The HIPAA Privacy and Security Rules require each of us to stringently protect each patient's privacy in relation to health and identification information. All unique individual identifying numbers, characteristics, codes health and demographic information are covered under HIPAA rules and must be kept private except for permitted uses and disclosures.

All health and demographic information about an individual that is transmitted or maintained in any medium where the information:

- Is created or received by a health care provider, health plan, employer, or health care clearinghouse; and
- Relates to the past, present, or future
 - Physical or mental health condition of an individual, or
 - Provision of health care to an individual, or
 - Payment for the provision of health care to an individual
- Individual identifiers that are protected include:
 - Name
 - Street address or County
 - Precinct or Zip code (or equivalent) except for the first three digits
 - Dates, except year
 - Birth date
 - Admission date
 - Discharge date
 - Date of death
 - Telephone numbers
 - Fax numbers
 - Email addresses
 - Social security numbers
 - Medical record numbers
 - Health plan beneficiary numbers
 - Account number or Certificate/license numbers
 - Vehicle identifiers and serial numbers
 - Device identifiers and serial numbers
 - Web universal resource locations (URLs/IP addresses)
 - Biometric identifiers, including finger and voice prints
 - Full face photographic images and any comparable images
 - Any other unique identifying number, characteristic, or code

You are not allowed to share, copy, discuss, write or otherwise disclose any protected health information or identifying information except what is specifically allowed or required for treatment, payment, or health care operations, and or as mandated.

Permitted Uses and Disclosures

The only time that health and identification information can be disclosed is for:

- Treatment
- Payment
- Health Care Operations
- Mandated disclosure is required for:
 - Health oversight activities
 - Judicial and administrative proceedings
 - Law enforcement purposes
 - Organ donation

Employment Agreement

Only the “minimum necessary disclosures” may be made to accomplish the intended purpose. ALL other uses The health care facility you are in will have the appropriate authorization forms with the required information on them. While it is unlikely that you will need information that requires authorization, consult with the site staff/management if you think there may be a need.

- Do not copy any patient records without the approval of your preceptor. If approved to copy any document, you are still responsible for the privacy and security of records; including, but not limited to only copying the minimum necessary information.
- Do not make a copy (printed hardcopy of electronic copy) of any part of a patient record without checking with facility management to ensure appropriateness, authorization, and security.
- Do not take home or otherwise remove a health facility computer (this includes mobile devices) from the facility without proper encryption and approval from the facility management.

Should I have any questions about releasing, sharing, copying, etc. patient information, I will consult with my preceptor and or management of the facility before any action.

- Do report any potential breach of security or privacy, even if that is because you made a mistake. Better to let the facility management know so that everyone can work together to take steps to protect the private information. Hiding a mistake could result in harm to patients, the facility, and to you.

FIELD EMPLOYEE STANDARDS & PROCEDURES

Job Duties & Responsibilities

Employee will carry out the duties and responsibilities listed in the job description.

Policies & Procedures

Employee must abide company policies and procedures. the Company reserves the right to amend, add to, repeal or deviate from any or all of the rules and regulations wherever we believe it is necessary or desirable to do so.

Credentials

Employee must maintain current credentials, including professional license, professional liability insurance, auto Insurance, driver license, CPR, first aide, TB test and physical exam. Employee must update Employer of all expired credentials in a timely fashion. Failure to do so will result in disciplinary action.

Assignments

Employee is expected to report to their work as assigned. If there is a conflict employee must notify management immediately. If unable to make to work assignment, employee must call the office at least twenty-four (24) hours in advance of a scheduled assignment. Employee is expected to arrive and leave their assignment as scheduled.

Skilled Nursing Documentation

Employee is required to document each time the patient is seen. Nursing notes must be clear, concise and complete. Unless documentation is completed and turned in, employee has not completed their assignment. Notes must be incorporated into the clinical record within forty-eight (48) hours after patient is seen. Failure to submit the signed required documentation in a timely manner may constitute grounds for disciplinary action.

Route Sheets

Employee is required to get a route sheet signed each time a service is rendered. Route Sheets must be submitted in a timely fashion. Employee will not be reimbursed for their time or services if no route sheet has been submitted to the Company.

Care Plan

Employee is to provide the care as it is outlined in the care plan. Do not provide care that is not on the care plan without the Nursing Supervisor's approval.

Note: All the visits should be compliant with the plan of care approved by the patient's physician. With the exception of emergencies (PRN), all extra visits should be approved by the patient's physician, the employer director of patient care services or nursing supervisor. All emergency visits should be reported immediately to the employer.

Standard Precautions

Each employee is required to follow standard precautions in all interactions with patients. *Employee must wear and use the correct PPE in accordance with the guidelines they're given.*

Gifts & Favors

Employee may not accept gifts of any kind from the patient or the client including gifts of money or “tips”. Do not remove anything from the client's house with or without permission from the office. Do not accept or give “loans” of money or possessions to clients.

Theft

Unauthorized removal of anything from a client's house or property is theft and you will be prosecuted. the Company will not tolerate theft and it is grounds for immediate dismissal. All allegations of theft made by a client will be referred to the local police department or sheriff's

office for investigation. If contacted by the agency or the local authorities, employee will need to cooperate fully with the investigation. Failure to cooperate in a criminal investigation will be grounds for dismissal.

Training/Education/In-Service

Employee will be responsible to attend in-service training or to pick up written in-service materials. Education programs are offered by the Company a minimum of once per month.

Performance Evaluation

Employee will be evaluated at the end of the three (3) month probationary period. During this introductory period, employer will be able to determine whether this position is right for employee. At the same time, the Company will be able to evaluate the employee's ability to perform the required job duties and responsibilities. Even after the successful completion of the probationary period, employee performance and conduct will be expected to meet Company standards. Employee will receive a written performance evaluation no less frequently than every twelve (12) months after your date of hire

At-Will Employment

As an employee of the Company, your employment is "at-will." This means that during the course of employment with the Company, employees are free to terminate their employment with the Company at any time, with or without a reason, and the Company has the right to terminate employees at any time, with or without a reason. Although the Company may choose to terminate an employee for cause, cause is not required. No one other than the President of the Company has the authority to alter this at-will employment arrangement, to enter into an agreement for employment for a specified period of time, or to make any agreement contrary to this at-will arrangement. Furthermore, any such agreement must be in writing and must be signed by the President of the Company.

Termination

Employee may at any time terminate this agreement and employment by giving not less than two (2) weeks written notice to the Employer.

RESTRICTIVE COVENANT & CONFIDENTIALITY AGREEMENT

I hereby acknowledge that in the course of my employment, the Company will make available to me confidential and secret information consisting of lists containing names, addresses and salaries of company employees, list of financial and/or contractual relations with such customers, administrative manuals, directives and policies relating to the internal operations of the company and various documents containing information relating to the company's recruiting, training, operating, marketing and soliciting functions, as well as other non-publicly disclosed information (hereinafter, collectively referred to as the "Proprietary Materials" I acknowledge that the said Proprietary Materials constitute a vital part of the company's business and have developed by the company and maintained by their very nature, trade secrets and confidential information, knowledge of which is not generally available to the public and access to which I have. Employment of myself and access to such Proprietary Materials is being extended to me on the company's reliance that I will observe the following covenants and agreements.

1. **Access to Trade Secrets and Confidential Information.** Employee recognizes that Employee shall be employed in a sensitive position in which, as a result of a relationship of trust and confidence, Employee will have access to trade secrets and other highly confidential and sensitive information. Employee further recognizes that the knowledge and information acquired by Employee concerning the Company's customer lists and materials regarding employer/employee contracts, customers, pricing schedules, vital part of the Company's business and constitute, by their very nature, trade secrets and confidential knowledge and information. Employee hereby stipulates and agrees that all such information and materials shall be considered trade secrets. If it is at any time determined that any of the information or materials identified above are, in whole or in part, not entitled to protection as trade secrets, they shall nevertheless be considered and treated as confidential information that is protected under this Agreement, in the same manner as trade secrets, to the maximum extent permitted by law. Employee agrees that Employee will not directly or indirectly use or cause the use of any trade secret or confidential information in a manner that conflicts with the best interests of the Company.
2. **Restrictions on Use of Proprietary Information.** In addition to the obligations contained in Section 1, Employee agrees that Employee will not, either directly or indirectly, or for competitive or other purposes, disclose or cause to be disclosed or make or cause any unauthorized use of any trade secret or confidential knowledge or information either during Employee's employment or at any time thereafter. Employee also agrees that all such trade secrets or other confidential information, and any copy, extract or summary thereof, whether originated or prepared by or for Employee or otherwise coming into Employee's knowledge, possession or control, shall be and remain the exclusive property of the Company.
3. **Upon termination of employment,** employee shall deliver to the Company all petty cash, equipment, records, manuals, training materials, copies of records, documents, keys, and other property of whatever nature, tangible and intangible, which belong to the Company and are then in Employee's possession or control.
4. **During the entire period Employee is employed by the Company,** Employee agrees to devote his/her best efforts during the entire working day to advance the interests of the Company and shall not, alone or as a member of partnership, officer, director, stockholder, agent or employee of any other corporation or business, be engaged in or connected with any business that is in competition with the Company or similar to the Company's without written authorization of the Company.
5. **Protection of Company's interest in Customers.** Employee agrees that during the term of Employee's employment by the Company and for a period of one (1) year thereafter, Employee will not, either directly or indirectly, either for Employee or for any other person, firm, or corporation, make known or divulge the names or addresses of any of the customers of the Company at the time Employee entered the employ of the Company or with whom Employee became acquainted after entering the Company's employ, to any person, firm or corporation, and that Employee will not, directly or indirectly, whether for Employee or for any other person, firm, company or corporation, call upon, solicit, divert or take away, or attempt to solicit, call on, divert or take away any of the Company, customers, business, or clients, including but not limited to, those upon whom Employee called on whom Employee solicited or the whom Employee catered or provided services or with whom Employee became acquainted while engaged as an employee in the Company's employ.

6. **Competitive Business.** During the period of Employee's employment, Employee agrees that Employee will not undertake to perform any planning for, or engage in the organization of, any business activity that is actually or potential competitive with the Company's business, or combine or conspire with any other person, entity or employees or representatives of the Company for the purpose of organizing any such competitive business activity.
7. **Agreement Not to Disrupt or Interfere with Company's Business.** Employee specifically agrees that during the period of Employee's employment with the Company and following its termination, for any reason whatsoever, Employee shall not disrupt, damage, impair, or interfere with the business of the Company in any manner, including without limitation, either by directly or indirectly inducing or attempting to induce any employee to leave the employ of the Company, or by inducing or attempting to induce any employee, consultant, sales representative or any independent contractor to sever or modify that person's relationship or engagement with the Company, by interfering with or raiding the Company's employees, disrupting its relationships with customers, agents, representatives or vendors, or otherwise it is specifically understood that this provision shall survive and continue in effect for a period of one (1) year following employee's separation from the Company's employ, whether voluntarily or involuntarily
8. **Employee agrees** that if he/she violates the covenants and agreements set forth above, the Company shall be entitled to an accounting and repayment of all profits, compensation, remuneration or benefits which Employee directly or indirectly has realized or may realize as a result of, growing out of, or in conjunction with any violation of any partial and justified liquidated damages; such remedies shall be in addition to an not in limitation of any injunctive relief or other rights or remedies to which the Company is or may be entitled at law or in equity under this Agreement and that, in the event the Company is required to enforce the terms of this Agreement including but not limited to the enforceability of the arbitration provision contained herein and/or any award there under, through court proceedings, the Company shall be entitled to reimbursement for all legal fees, costs and expenses incident to enforcement. The parties hereby agree that if the scope of enforceability of the restrictive covenant is in dispute, a court or other trier of fact may modify and enforce the covenant to the extent that it believes it to be reasonable under the conditions existing at this time. In order to determine whether or not the Employee has violated the restrictive covenants of this Agreement, either party may require that the controversy be submitted to final and binding arbitration. THIS CONTRACT CONTAINS A BINDING PROVISION THAT MAY BE ENFORCED BY THE PARTIES. In the event of a dispute involving the restrictive covenants contained herein, the offended party must request a panel of five (5) arbitrators from the Federal Mediation and Conciliation Service designating a panel drawn geographically from the state in which Employee was last employed by the Company. By alternatively striking names with Employee going first and the Company going second, an arbitrator shall be selected from the panel. Said selection must occur within ten (10) days following receipt of the panel. The Company and the Employee shall split the cost of the arbitrator, including travel expenses, evenly. In the event the arbitrator finds the restrictive covenants to have been violated, the arbitrator may award damages, return of documents, cessation of Employee activities or such other relief as shall make the Company whole. The company shall have a right to proceed to court for enforcement of the arbitrator's award.
9. **Obligations Binding.** Employee's obligations under this Agreement shall continue in effect beyond Employee's period of employment and such obligations shall be binding on Employee's assigns, administrators, and other legal representatives. The rights and obligations of the Company under this Agreement shall inure to the benefit of and shall be binding on the successors and assigns of the Company.
10. **Purpose of Agreement to Maximize Enforceability.** The parties acknowledge that they have attempted to limit Employee's rights to compete only to the extent permitted by law, including to the extent necessary to protect the Company from unfair competition. The parties hereby agree that if the scope of enforceability of the restrictive covenant is in dispute, a court or other trier of fact may modify and enforce the covenant to the extent that it believes it to be reasonable or necessary under the conditions existing at this time to make it enforceable to the maximum extent permitted by law.
11. **Separability.** The provisions of this Agreement are severable, and if any one or more provisions is or may be determined by a court of competent jurisdiction to be unenforceable, in whole or in part, the remaining provisions of the Agreement shall nevertheless be binding and enforceable to the maximum extent permitted by law.
12. **Employee Representations.** Employee represents and warrants that Employee is free to enter into this Agreement and to perform each of the terms and covenants of the Agreement. Employee further represents and warrants that Employee is not restricted or prohibited, contractually or otherwise, from entering into and performing this Agreement, and that Employee's execution and performance of this Agreement is not a violation or breach of any other agreement between Employee and any other person or entity.
13. **Non-Waiver Provision.** The failure of a party to insist upon strict adherence to any term of this Agreement or to object to any failure to comply with any provision of this Agreement, shall not (a) constitute or operate as a waiver of the term or provision, (b) estop that party from enforcing that term or provision, or (c) preclude that party from enforcing that term or provision or any other term or provision by laches. The receipt of a party of any benefit from the Agreement shall not affect a waiver or estoppel of the right of that party to enforce any provision of the Agreement.
14. **Final Agreement.** This Agreement supersedes all previous agreements, whether written or oral, expressed or implied, relating to the above subject matter, and shall not be changed or subject to change orally.
15. **Employee acknowledges** that Employee has carefully read and considered the provisions above and has had an opportunity to consult independent legal counsel and accepts employment on these term on or on Employee's hire or promotional if after.

LEGAL & ETHICAL RESPONSIBILITY

To all employees: the Company acknowledges both legal and ethical responsibility to protect the privacy of the patients and the employees. Consequently, the indiscriminating or unauthorized review, use or disclosure of personal information, medical or otherwise, regarding any patient or employee is expressly prohibited.

Except when required in the regular course of business, the discussion, use, transmission or narration, in any form of any patient information which is obtained in the regular course of your employment is strictly forbidden.

Those individuals who also have access to employee information are expected to respect and treat the confidentiality of such information in the same manner as that of patient information.

Any violation of this policy shall constitute grounds for severe disciplinary action, including possible termination of the offending employee.

POLICIES & PROCEDURES

the Company has always maintained the confidentiality and prevented the unauthorized disclosure of its patients, agency and employee information and proprietary information. In furtherance of that objective it has adopted an HR Policy and incorporated the following language in the Employee Handbook Confidentiality:

“Each employee is responsible for safeguarding confidential information obtained in connection with his or her employment. In the course of your work; you may have access to confidential information regarding the company, its suppliers, its customers or perhaps even fellow employees. It is your responsibility to in no way reveal or to divulge any such information unless it is necessary to do so in the performance of your duties. Access to confidential information should be on a “need to know” basis and must be authorized by your supervisor.

In accordance with the HR Policy, each employee is requested to sign a Restricted Covenant/Confidentiality Agreement to implement the above policies and procedures. Accordingly, each employee will be asked to sign a corresponding agreement to protect the Company confidential information.

ACKNOWLEDGEMENT OF EMPLOYEE HANDBOOK

The Employee Handbook contains important information about the Company, and I understand that I should consult Human Resources regarding any questions not answered in the handbook.

Since the information, policies, and benefits described herein are subject to change at any time, I acknowledge that revisions to the handbook may occur. All such changes will generally be communicated through official notices, and I understand that revised information may supersede, modify, or eliminate existing policies. Only the President of the Company has the ability to adopt any revisions to the policies in this handbook.

Furthermore, I understand that this handbook is neither a contract of employment nor a legally-binding agreement. I have had an opportunity to read the handbook, and I understand that I may ask my supervisor or any employee of the Human Resources Department any questions I might have concerning the handbook. I accept the terms of the handbook. I also understand that it is my responsibility to comply with the policies contained in this handbook, and any revisions made to it. I further agree that if I remain with the Company following any modifications to the handbook, I thereby accept and agree to such changes.

ACKNOWLEDGEMENT OF GENERAL ORIENTATION

I have had the opportunity to ask questions about the policies, and I understand that any future questions that I may have about the above or information provided in the New Employee Orientation and its contents will be answered by the Human Resources or his or her designated representative upon request. I agree to and will comply with the policies, procedures, and other guidelines set forth in the orientation. I understand that the agency reserves the right to change, modify, or abolish any or all of the policies, benefits, rules, and regulations contained or described in the orientation as it deems appropriate at any time, with or without notice. I acknowledge that neither the orientation nor its contents are an express or implied contract regarding my employment. I further understand that all employees of the agency, regardless of their classification or position, are employed on an at-will basis, and their employment is terminable at the will of the employee or the agency at any time, with or without cause, and with or without notice. I have also been informed and understand that no officer, agent, representative, or employee of the agency has any authority to enter into any agreement with any applicant for employment or employee for an employment arrangement or relationship other than on an at-will basis and nothing contained in the policies, procedures, booklets, or any other documents of the agency shall in any way create an express or implied contract of employment or an employment relationship other than one on an at-will basis.

By signing below, I hereby acknowledge that I have: (i) have had sufficient time to review and consider this Agreement thoroughly; (ii) have read and understand the terms of this Agreement and your obligations hereunder; (iii) have had the opportunity to obtained advice from legal counsel of choice, if necessary and desired, in order to interpret any and all provisions of this Agreement; and (iv) you have entered into this Agreement voluntarily and without any pressure.

Employee NameSignatureDate

Employer NameSignatureDate